

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wurtzel	Team: Squad #02	CCRB Case #: 201600125	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/07/2016 4:45 AM	Location of Incident: Rockaway Avenue and Prospect Place	18 Mo. SOL 7/7/2017	Precinct: 73		
Date/Time CV Reported Thu, 01/07/2016 1:29 PM	CV Reported At: CCRB	How CV Reported: E-mail	Date/Time Received at CCRB Thu, 01/07/2016 1:29 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Teddy Duroc	10360	948926	073 PCT
2. POM Nelson Reyes	27566	953309	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Teddy Duroc	Abuse: Police Officer Teddy Duroc stopped the vehicle in which § 87(2)(b) was an occupant.	A . Substantiated
B . POM Nelson Reyes	Abuse: Police Officer Nelson Reyes stopped the vehicle in which § 87(2)(b) was an occupant.	B . Substantiated
C . POM Teddy Duroc	Abuse: Police Officer Teddy Duroc frisked § 87(2)(b)	C . Substantiated
D . POM Teddy Duroc	Abuse: Police Officer Teddy Duroc searched § 87(2)(b)	D . Substantiated
E . POM Nelson Reyes	Abuse: Police Officer Nelson Reyes questioned § 87(2)(b)	E . Substantiated
F . POM Teddy Duroc	Abuse: Police Officer Teddy Duroc searched the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 7, 2016, at approximately 4:45 a.m., § 87(2)(b) was driving on Rockaway Avenue towards Prospect Place in Brooklyn when he was pulled over by PO Teddy Duroc and PO Nelson Reyes of the 73rd Precinct Anti-Crime unit (**Allegations A and B**). PO Duroc and PO Reyes approached the vehicle and PO Duroc informed § 87(2)(b) that he had been stopped for illegal tints. Upon closer inspection, PO Duroc recanted this accusation but stated that he still had to check § 87(2)(b) driver's license for warrants. PO Duroc returned after approximately three minutes and asked § 87(2)(b) to step out of his vehicle. § 87(2)(b) complied and was then frisked and searched by PO Duroc as he stood against the vehicle (**Allegations C and D**).

§ 87(2)(b) was directed to stand at the back of the vehicle with PO Reyes, who then asked him about his work and his reason for being in the neighborhood (**Allegation E**). During this time, PO Duroc searched the vehicle by opening each door and looking into the glove compartment and center console (**Allegation F**). PO Duroc completed his search and departed the location with PO Reyes without issuing any summonses (Board Review 01-04). § 87(4-b), § 87(2)(g)

Video was provided to the CCRB by § 87(2)(b) who obtained it from an unidentified bystander (Board Review 05).



201600125_20160112_0945_DM.mp4

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation for this case, § 87(2)(b) § 87(2)(b) stated during his verified statement that he did not intend on filing a lawsuit for this incident. A Notice of Claim search request was submitted to the New York City Office of the Comptroller on March 14, 2016, and will be added to the case file upon receipt (Board Review 06). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 08).
- PO Duroc has been a member of the NYPD for five years and has one prior CCRB allegation involving one case and no substantiated allegations against him. § 87(2)(g)
- PO Reyes has been a member of the NYPD for three years and has eight prior CCRB allegations involving six cases and two substantiated allegation. § 87(2)(g)
 - In CCRB case number 201407314, PO Reyes used excessive force and received Command Discipline A from the NYPD.
 - In CCRB case number 201502327, PO Reyes initiated an unlawful stop. The NYPD has not yet provided a disposition for PO Reyes.

Potential Issues

A search of the Warrant Audit System by IAB confirmed that an officer conducted a warrant check for § 87(2)(b) on January 7, 2016, at 4:43 a.m. This time and date stamp corresponds with the information provided by § 87(2)(b). The tax identification code for the officer who performed the search was entered as '000018' and the NYPD could not identify the officer who conducted the search (NYPD Document 01). A follow-up request to IAB for searches on OMNIX and ZFinest did not product a positive result (NYPD Document 02). The tax identification code of '000018' does not correspond to any officer in the NYPD. The digits '18' do not correspond to the final two numbers of PO Duroc's or PO Reyes' tax identification number. As per Det. Crandon of IAB, there is no way for the NYPD to identify the officer who conducted the warrant check for § 87(2)(b) on the incident date.

§ 87(2)(b) provided video footage from a witness who filmed his detainment from across the street. § 87(2)(b) stated that the witness only provided the name § 87(2)(b) § 87(2)(b) emailed video footage of the incident to § 87(2)(b) and his email address was provided by § 87(2)(b) to the investigation. A 'please call' email was sent to § 87(2)(b) on January 14, 2016. The email was successfully delivered but no response was received. The investigation was unable to establish communication with § 87(2)(b) or identify additional contact information for him. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) described the officer who frisked and searched him and searched his vehicle as an approximately 5'11" tall black male in his late-thirties with a slim build and a goatee and wearing army camouflage pants and a black hat. § 87(2)(b) described the officer who questioned him as an approximately 5'11" tall white male with a slim build and a mask covering the lower part of his face. § 87(2)(b) stated that the officers were driving a black, Chevrolet Impala with license plate number § 87(2)(e), § 87(2)(b). The NYPD's Fleet Services Division identified the plate as belonging to a black 2011 Chevrolet Impala, number 0528, and assigned to the 73rd Precinct (NYPD Document 03).

The 73rd Precinct identified PO Duroc and PO Reyes as being assigned to vehicle number 0528 on the incident date (NYPD Document 04). Additionally, a search of the Warrant Audit System confirmed that § 87(2)(b) name was run for warrants at the time and date that he reported the incident occurring. PO Duroc is a § 87(2)(b) black male in his early-thirties with a short beard. PO Duroc stated that he owns a pair of camouflage pants but does not wear them during his night tour (Board Review 11). PO Reyes is a § 87(2)(b) Hispanic male in his early-thirties. PO Reyes stated that he owns a mask similar to the one described by § 87(2)(b) but that he does not wear it while on plainclothes assignments (Board Review 12). § 87(2)(g)

Allegation A – Abuse of Authority: PO Teddy Duroc stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B – Abuse of Authority: PO Nelson Reyes stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C – Abuse of Authority: PO Teddy Duroc frisked § 87(2)(b)

Allegation D – Abuse of Authority: PO Teddy Duroc searched § 87(2)(b)

Allegation E – Abuse of Authority: PO Nelson Reyes questioned § 87(2)(b)

Allegation F – Abuse of Authority: PO Teddy Duroc searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) filed this complaint with the CCRB on January 7, 2016, and provided a telephone statement on January 8, 2016. § 87(2)(b) appeared at the CCRB and provided a verified statement on January 12, 2016. PO Duroc was interviewed on January 29, 2016, and PO Reyes was interviewed on February 10, 2016.

As per § 87(2)(b) PO Duroc and PO Reyes pulled him over under the pretense of identifying tinted windows on his vehicle. PO Duroc then admitted to § 87(2)(b) that the windows were not as dark as he suspected but proceeded to frisk and search § 87(2)(b). § 87(2)(b) stated that he was then directed to stand at the back of his vehicle where PO Reyes spoke to him about his reason for being in the area while PO Duroc conducted a search of the interior of his vehicle.

PO Duroc and PO Reyes denied any knowledge of this incident and both officers denied interacting with any civilians on the incident date. Neither officer recorded any entries in their memo books for the incident date but acknowledged that the incident location falls within the confines of their precinct. PO Duroc stated that he owns a pair of camouflage pants but denied wearing them while working. PO Reyes stated that he owns a partial face mask but denied wearing this while on plainclothes assignments. Both officers confirmed that they were working out of RMP number 0528 and denied switching vehicles with other officers on the incident date.

Video of the incident shows PO Duroc conducting a search of the interior of § 87(2)(b) vehicle while PO Reyes stands with § 87(2)(b) at the back of the vehicle. The video footage of the incident was shown to both officers during their interviews and both stated that it did not refresh their recollection to any such incident.

While PO Duroc and PO Reyes both denied interacting with § 87(2)(b) on the incident date, the investigation has determined that sufficient documentary evidence exists to identify PO Duroc and PO Reyes as the officers who stopped § 87(2)(b) vehicle on January 7, 2016. As stated above, police documentation has identified PO Duroc and PO Reyes as the officers who were operating the subject vehicle on the incident date, a warrant audit system search confirmed that § 87(2)(b) was stopped at the date and time he claimed and video of the incident confirmed that the interaction occurred as described by § 87(2)(b).

The police may stop an automobile when they have reasonable suspicion of criminal activity. *People v. Ulerio*, 781 N.Y. 2d 627 (2003) (Board Review 13). An officer may stop and detain an individual if he or she has reasonable suspicion that the individual has committed, is committing, or is about to commit a crime. Furthermore, a frisk and “minimal intrusion” onto an individual’s person is permissible if an officer reasonably suspects that a person is armed and dangerous. *People v. DeBour*, 40 N.Y.2d 210 (1976) (Board Review 14). If officer have no articulable reason to suspect criminal activity or to fear for their safety, a search of the vehicle is not justifiable. A traffic stop initiated after observing an ordinary traffic infraction will not justify a search of the vehicle. If an officer conducts a visual inspection of the interior of the vehicle that would have

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date